

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
LAMEEK MARTIN,

Plaintiff,

SUMMONS

-against-

Plaintiff designates Kings
County as the place of trial.

THE LIVING ROOM STEAK HOUSE, THE CITY OF NEW
YORK, THE NEW YORK CITY POLICE DEPARTMENT
and DETECTIVE HYRAM RIFFAS shield number 4814 of the
62nd Precinct,

The basis of venue is:
CPLR 504(3)

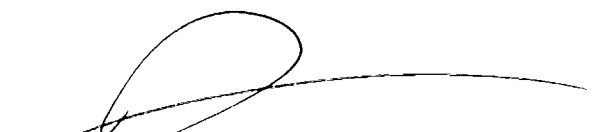
Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Fresh Meadows, New York
December 18, 2017



DANIELLA LEVI, ESQ.
DANIELLA LEVI & ASSOCIATES, P. C.
Attorneys for Plaintiff
LAMEEK MARTIN
159-16 Union Turnpike, Suite 200
Fresh Meadows, New York 11366
(718) 380-1010
Our File No. 17DL0088

TO:
THE LIVING ROOM STEAK HOUSE, INC.
8020 Bay Parkway, Apt. A-1
Brooklyn, NY 11214

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

DETECTIVE HYRAM RIFFAS
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAMEEK MARTIN,

Plaintiff,

Index No.:

-against-

**VERIFIED
COMPLAINT**

THE LIVING ROOM STEAK HOUSE, INC., THE CITY OF
NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and DETECTIVE HYRAM RIFFAS shield
number 4814 of the 62nd Precinct,

Defendants.

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Plaintiff, by his attorneys **DANIELLA LEVI & ASSOCIATES, P. C.**, complaining of
the Defendants, respectfully alleges, upon information and belief, as follows:

BACKGROUND

1. On or about June 13, 2016, due to the negligence of the Defendant The Living Room Steak House, Inc., Plaintiff Lameek Martin was shot in the abdomen in the establishment owned and operated by Defendant The Living Room Steak House, Inc. Immediately following the shooting, Mr. Martin was transported to the hospital and underwent an immediate twenty-three hour lifesaving surgery. He suffered numerous serious and permanent injuries. On or about July 22, 2016, Mr. Martin was wrongfully arrested through the use of excessive force, maliciously prosecuted, falsely imprisoned; was denied medical care and was deprived of his civil rights under 42 U.S.C. §1981 et. seq. by the City of New York, The New York City Police Department and Detective Hiram Riffas (collectively, the “Municipal Defendants”). The Municipal Defendants unlawfully and improperly leveled false charges against Mr. Martin for the criminal activity in connection with the incident that occurred on June 13, 2016, maliciously prosecuted Mr. Martin, caused, permitted and allowed Mr. Martin to be incarcerated for approximately

ninety-two days in City Custody at Rikers Island and caused Mr. Martin to defend himself against false and baseless charges up to and through April 4, 2017. Mr. Martin was arrested and charged with two counts of criminal possession of a weapon in the second degree, one count for criminal possession of weapon in the fourth degree and one count for criminal possession of a firearm. On or about October 19, 2016, all State criminal charges were dismissed against Mr. Martin by the Grand Jury Minutes Decision and Order. The Certificate of Disposition dismissing all charges was received by Mr. Martin on April 4, 2017.

PARTIES

2. That at all times herein mentioned, Plaintiff was and still is a resident of the County of Nassau, State of New York.

3. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. That at all times herein mentioned, the defendant **THE LIVING ROOM STEAK HOUSE, INC.** was and still is a domestic partnership existing under and by the virtue of the laws of the State of New York.

5. That at all times herein mentioned, the defendant **THE LIVING ROOM STEAK HOUSE, INC.** was and still is a domestic limited liability partnership existing under and by the virtue of the laws of the State of New York.

6. That at all times herein mentioned, the defendant **THE LIVING ROOM STEAK HOUSE, INC.** was and still is a domestic limited liability company existing under and by the virtue of the laws of the State of New York.

7. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** was and still is a foreign corporation duly authorized to do business in the State

of New York.

8. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** (“NYC”) was and still is a municipal Corporation existing under and by virtue of the laws of the State of New York.

9. That at all times herein mentioned, Defendant **THE NEW YORK CITY POLICE DEPARTMENT** (“NYPD”) was, and still is an agency of the City of New York.

10. That at all times herein mentioned, Defendant **DETECTIVE HYRAM RIFFAS** Shield number 4814 of the 62nd precinct (hereinafter referred to as Defendant RIFFAS) was a resident of the County of Kings, City and State of New York.

VENUE

11. Venue is proper herein in the County of Kings pursuant to CPLR §504(3) in that the negligence, deprivation of rights, false arrest, excessive force, unlawful detention and malicious prosecution occurred in the County of Kings.

ALLEGATIONS

12. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** maintained a principal place of business in the County of Kings, State of New York.

13. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** owned the premises and appurtenances and fixtures thereto, located at 2402 86th Street, Brooklyn, NY 11214 (hereinafter “Premises”).

14. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** owned and operated a bar and/or club and/or restaurant at the aforesaid Premises (the Establishment).

15. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** managed the aforesaid Establishment and Premises.

16. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** controlled the aforesaid Establishment and Premises.

17. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** maintained the aforesaid Establishment and Premises.

18. That at all times herein mentioned, the Defendant **THE LIVING ROOM STEAK HOUSE, INC.** repaired the aforesaid Establishment and Premises.

19. That at all times herein mentioned, Defendant **THE LIVING ROOM STEAK HOUSE, INC.** was a tenant at the aforesaid Premises.

20. On June 13, 2016, Plaintiff **LAMEEK MARTIN** was a lawful patron at and in the aforesaid Establishment and Premises.

21. On June 13, 2016, while Plaintiff was a lawful patron at the aforesaid Establishment and Premises, he was caused to sustain severe and permanent injuries when he was shot in the abdomen and assaulted by individuals who were known to the Defendant to have violent propensities.

22. That on and prior to June 13, 2016, there was a history of violent criminal activity at the Establishment and Premises, therefore, Defendant **THE LIVING ROOM STEAK HOUSE, INC.** knew or should have known there was a likelihood of violent conduct/activity at the Establishment and Premises and/or a likelihood of violent conduct/activity by these violent persons which was likely to endanger the safety of individuals, including the Plaintiff.

23. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendant and their agents, servants, employee and/or

licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully and maliciously injured in the Establishment and Premises under its supervision by their collective failure to provide adequate and sufficient security to prevent such injury.

24. That Defendant **THE LIVING ROOM STEAK HOUSE, INC.** is liable for the actions of its agents, servants, employees, licensees, contractors, and/or volunteers, by virtue of the doctrine of *Respondeat Superior* as their actions were generally foreseeable by the Defendant and they were acting within the scope of their employment by Defendant.

25. That the Defendant RIFFAS was a police officer employed by the New York City Police Department, in his official capacity as a police officer, shield number 4814 of the 62nd precinct, and in his individual capacity, was operating under the employment of the New York City Police Department; and was employed in such capacity as a police officer and/or police detective by defendants NYC and NYPD.

26. That at all times relevant, defendant NYC, its agents, servants, employees, and/or representatives hired, employed, assigned, designated, trained, supervised, monitored, placed, directed and/ otherwise controlled certain individuals employed and/or serving in the capacity as police officers and/or detectives for the defendants, NYC and/or NYPD.

27. At all times herein mentioned, Defendants RIFFAS, NYC and NYPD stand in such a relationship with each other in providing law enforcement service as to make each liable for the acts and omissions of the others.

28. That at all times relevant, defendant NYPD and RIFFAS, its agents, servants, employees and/or representatives hired, employed, assigned, designated, trained, supervised, monitored, placed, directed and/ otherwise controlled certain individuals employed and/or

serving in the capacity as police officers and/or detectives for the defendants, NYC and/or NYPD.

29. That at all times relevant, the 62nd precinct of the New York City Police Department was a unit, division and/or precinct of defendant NYPD, as part of a constituent department or agency established and maintained by defendant NYC.

30. That at all times relevant, certain individuals under the employ, direction, supervision and control of the defendants, RIFFAS, NYC and NYPD, were operating as duly and acting police officers and/or detectives.

31. That at all relevant times, certain individuals operating under the employ, direction, supervision and control of the defendants, NYC and NYPD, while acting pursuant to their authority as a New York City police officer/detective and/or agent, servant, employee and/or representative of defendants NYC and NYPD, acted within the scope of their employment with said defendants.

32. That alternatively, these certain individuals including but not limited to Defendant RIFFAS, in their official capacity as a police officer and/or detective, affiliated with and/or serving on behalf of the 62nd Precinct, New York City Police Department and/or certain police officers operating under the employ, direction, supervision and control of defendants NYC and NYPD, were, at all relevant times, acting outside the scope of their employment.

33. That at all times relevant, certain individuals under the employ, direction, supervision and control of the defendants, RIFFAS, NYC and NYPD, were acting pursuant to their authority as New York City police officers, detectives, agents, servants, employees and/or representatives of defendants NYC and NYPD. Notwithstanding the unconstitutional and unlawful conduct of these certain individuals, in their official capacity as a police officer and/or detective, affiliated

with and/or serving on behalf of the 62nd Precinct, New York City Police Department, who wrongfully, unlawfully, falsely and/or maliciously arrested using excessive force and imprisoned the plaintiff, the actions of said individuals were taken in the course of their duties as New York City/New York City Police Department police officers, and were incidental to their otherwise lawful and governmental function as agents, servants, employees and/or representatives of defendants NYC and/or NYPD.

34. Plaintiff was wrongfully, unlawfully and unjustifiably arrested, charged, detained and deprived of his liberty against his will, and was imprisoned on July 22, 2016 by the Defendants NYC, NYPD and RIFFAS.

35. At all times mentioned, the unlawful, wrongful and false arrest and imprisonment of Plaintiff was without right or probable cause, and was forcible and against his will.

36. That plaintiff LAMEEK MARTIN was unlawfully, wrongfully, falsely and/or Maliciously arrested and charged with a crime; detained and imprisoned; as well as intimidated, even though plaintiff had committed no crimes, and despite defendants RIFFAS, NYC and/or NYPD, and their agents, knowing and/or possessing definitive information that plaintiff had not committed the subject crime and in fact was a victim of a shooting; and that defendants could not evince any facts or circumstances which could lead a reasonable prudent person to believe that plaintiff was guilty of any crimes.

37. Awaiting prosecution for approximately ninety-two days, defendants NYC and NYPD failed to release Plaintiff and maliciously prosecuted the State case against Plaintiff, knowing there was no evidence to proceed with the case and charges against him.

38. Defendants, NYC and NYPD, their officers, agents, servants and/or employees including but not limited to Defendant RIFFAS were responsible for Plaintiff's malicious

prosecution. Plaintiff was imprisoned based on specious false and non-existent information for ninety-two days, from July 22, 2016 through and including October 22, 2017, for a period of days thereafter.

39. Plaintiff LAMEEK MARTIN was incarcerated at Rikers Island.

40. Defendants intended to and did in fact confine Plaintiff, and physically prevented him from leaving their custody and kept him under their supervision without access to his freedom, family and home. Plaintiff was conscious of his unlawful imprisonment and did not consent to the confinement, all as a result of the malicious prosecution.

41. During the malicious prosecution of Plaintiff by Defendants, all criminal charges of Criminal Possession of a Weapon in the Second Degree with Intent to Cause Serious Physical Injury, brought against him and those same charges were later dismissed, but only after Plaintiff was imprisoned for ninety-two days, and made numerous appearances in court with his lawyer to defend against these bogus charges.

42. Throughout the period of Plaintiff's imprisonment and malicious prosecution, Defendants, NYC and NYPD, their officers, agents, servants and/or employees including but not limited to Defendant RIFFAS refused to give Plaintiff an opportunity to establish his innocence, despite all of the exculpatory evidence in defendants' possession and knowledge indicating that Plaintiff was, in fact, innocent.

43. The inexcusable delay of ninety-two days had unfairly prejudiced Plaintiff of his Rights under the Due Process Clause of the Fifth and Fourteenth Amendment.

44. Plaintiff made numerous appearances in court with his attorney. The charges against Plaintiff were dismissed as baseless.

45. That said resultant criminal prosecution initiated by defendants against the Plaintiff,

LAMEEK MARTIN, was adjudicated in favor of the plaintiff in that all charges were dismissed.

46. That the plaintiff, LAMEEK MARTIN, was released from defendants' custody upon Plaintiff's case being "dismissed" by the Honorable Court, pursuant to Defendants NYC, NYPD, RIFFAS and their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity; their agents, employees, servants and/or others acting upon defendants' behalf, having dismissed all charges against the Plaintiff herein; with plaintiff having been wrongfully, falsely, and maliciously charged for a crime which plaintiff did not commit; and with plaintiff being wrongfully, falsely, and maliciously arrested using excessive force; and with plaintiff being wrongfully, falsely and maliciously detained; and with plaintiff being wrongfully, falsely and maliciously imprisoned, as well as while being intimidated, pursuant to said wrongful arrest and wrongful imprisonment.

47. That as a result of the wrongful actions taken by the defendants RIFFAS, NYC, NYPD and their agents, herein, the plaintiff, LAMEEK MARTIN, sustained damages, including deprivation of his constitutional rights afforded him under the First, Fourth, Fifth and Fourteenth Amendment to the United States Constitution, as well as violation of his civil rights, pursuant to the dictates imposed by 42 U.S.C. §1983; and 42 U.S.C. §§1981, 1985 and 1986. Plaintiff is entitled to attorneys fees under 42 U.S.C. §1988.

48. That the plaintiff, LAMEEK MARTIN, was unlawfully arrested, charged, detained, confined, imprisoned and jailed within police custody; and was maliciously prosecuted, and intimidated by defendants RIFFAS, NYC, NYPD, and their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity;

their agents, employees, servants and/or others acting upon defendants' behalf, resulting in plaintiff having suffered deprivation of constitutional rights, as well as loss of freedom, in addition to other damages. Plaintiff also suffered serious, severe, and permanent personal injuries, as well as the physical and psychological trauma, shock, debasement, fright, great disgrace, embarrassment, loss of self-esteem, emotional harm and humiliation of being publicly detained and placed in custody, without any just or probable cause.

49. That the plaintiff, LAMEEK MARTIN, was unlawfully arrested, charged, detained, confined, imprisoned and jailed within police custody, and maliciously prosecuted, resulting in plaintiff having suffered deprivation of constitutional rights, as well as loss of freedom, in addition to other damages. Plaintiff also suffered serious, severe and permanent physical injuries, as well as the physical and psychological trauma, shock, debasement, fright, great disgrace, embarrassment, loss of self-esteem, emotional harm and humiliation of being publicly detained and placed in custody, without any just or probable cause.

50. As consequences of Defendants' wrongful actions, Plaintiff was:

- a) Arrested;
- b) Deprived of his freedom and falsely charged with crimes;
- c) Incarcerated, suffering in prison for ninety-two (92) days and defending the criminal charges for ninety-two (92) days;
- d) The subject of great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- e) The subject to great physical, mental, and emotional distress, suffering and harm;
- f) Prevented from attending to his necessary affairs in business;

- g) Prevented from caring for his family;
- h) Required to incur substantial bills for legal services rendered;
- i) Discredited in the minds of many members of the community, having his personal reputation and character injured;
- j) Plaintiff continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants;
- k) Deprived of appropriate medical care;
- l) The victim of a warrantless arrest;
- m) Deprived of his right to due process; and
- n) Maliciously prosecuted.

51. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being and were guilty of egregious and gross misconduct toward him.

52. That upon information and belief, and at all times pertinent hereto, the defendants, RIFFAS, NYC and/or NYPD, their agents, servants, employees and/or representatives, permitted and tolerated a pattern and practice of wrongful and unreasonable conduct rendered by police officers, including their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity; their agents, employees, servants and/or others acting upon defendants' behalf, operating under the employ, direction, supervision and control of defendants RIFFAS, NYC and/or NYPD.

53. That upon information and belief, the defendants, RIFFAS, NYC and/or NYPD, their

agents, services, employees and/or representatives, have maintained a system of review of police conduct which is so untimely and cursory to be ineffective, and to permit and tolerate the wrongful and unreasonable conduct of force by police officers, including their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity; their agents, employees, servants and/or others acting upon defendants' behalf, operating under the employ, direction, supervision and control of defendants RIFFAS, NYC and/or NYPD.

54. All of the foregoing occurred without the fault or provocation on the part of the Plaintiff.

55. Plaintiff sues all Defendants in their individual capacities.

56. That prior hereto on January 17, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on THE CITY OF NEW YORK and that thereafter said Defendants refused or neglected for more than thirty (30) days and up to commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

57. That a hearing pursuant to General Municipal Law §50(h), was adjourned and never rescheduled by the Comptroller's Office and therefore, said hearing has been waived.

58. That on November 7, 2017, Plaintiff moved to amend the Notice of Claim in the Supreme Court, Kings County. Presently the motion is pending.

59. That this action is being commenced within one year and ninety days after accrual

of this cause of action, or within the time allowed by law.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT THE
LIVING ROOM STEAK HOUSE, INC. – NEGLIGENCE**

60. Plaintiff repeats, reiterate and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

61. That Defendant **THE LIVING ROOM STEAK HOUSE, INC.** had a duty to provide adequate and sufficient security at the aforementioned Establishment and Premises to prevent an occurrence such as complained of herein.

62. That Defendant **THE LIVING ROOM STEAK HOUSE, INC.** breached its duty to Plaintiff by failing to take necessary steps to prevent these occurrences and/or to protect the Plaintiff and failed to provide adequate and sufficient security at the aforementioned Establishment and Premises.

63. That Defendant **THE LIVING ROOM STEAK HOUSE, INC.** was negligent and reckless in the ownership, management, control and operation of its Establishment.

64. That as a result of Defendant **THE LIVING ROOM STEAK HOUSE, INC.**'s negligence, the Plaintiff **LAMEEK MARTIN** herein was caused to sustain serious and permanent injuries.

65. That by reason of the foregoing, Plaintiff **LAMEEK MARTIN** demands judgment against the Defendant in an amount which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action, together with the interest, costs and disbursements of this action and includes punitive and exemplary damages.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF LAMEEK MARTIN
AGAINST DEFENDANT THE LIVING ROOM STEAK HOUSE, INC. FOR
NEGLIGENT HIRING/RETENTION/SUPERVISION**

66. Plaintiff repeats, reiterate and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

67. That Defendant employed and/or hired employees, agents, and independent contractors who were unfit to work in a bar and/or club and/or restaurant.

68. That Defendant had and/or should have reasonably had actual and/or constructive knowledge that the employees, agents, and independent contractors were unfit.

69. That Defendant was further negligent in the selection, interviewing, hiring, retention, training, supervision, control, management, and operation of its employees, agents, and independent contractors.

70. That the unfit employees, agents and independent contractors failed to prevent others from harming Plaintiff.

71. That by reason of the foregoing, Plaintiff **LAMEEK MARTIN** demands judgment against the Defendant in an amount which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action, together with the interest, costs and disbursements of this action and includes punitive and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF LAMEEK
MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE HYRAM RIFFAS FOR FALSE
ARREST**

72. Plaintiff repeats, reiterate and re-alleges each and every allegation contained in The preceding paragraphs with the same force and effect as if set forth more fully herein.

73. That the plaintiff, LAMEEK MARTIN, was unlawfully and falsely arrested and charged with crimes; detained and imprisoned by defendants RIFFAS, NYC and/or NYPD, their agents, servants, employees and/or representatives, including certain individuals operating as police officers under the employ, direction, supervision and/or control of defendants RIFFAS,

NYC and NYPD, their agents, servants, employees and/or representatives, and their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity; their agents, employees, servants and/or others acting upon defendants' behalf, even though Plaintiff had committed no crimes, and despite defendants' arresting police officers having possessed no reasonable basis or probable cause, warrant or exigency, to believe that plaintiff had committed any crimes and in fact knowing that Plaintiff was a victim of a shooting. Plaintiff was further unlawfully and falsely arrested, wrongfully imprisoned, and maliciously prosecuted.

74. That the acts, omissions, systematic flaws, policies, and customs of the defendants RIFFAS, NYC and/or NYPD, their agents, servants, employees and/or representatives, caused, in whole or in part, including their agents, while acting in their capacities as officers of the City of New York, and as officers employed by the New York City Police Department, in their official capacity as police officers, and in their individual capacity; their agents, employees, servants and/or others acting upon defendants' behalf, while operating under the employ, direction, supervision and/or control of defendants RIFFAS, NYC and/or NYPD, to wrongfully, unlawfully and falsely charge and arrest Plaintiff for committing a crime which plaintiff did not commit; and thereafter wrongfully, unlawfully and falsely detain, confine, imprison and jail plaintiff, with said imprisonment and jailing of plaintiff continuing for a period of ninety-two days; and for wrongfully physically intimidating the plaintiff, pursuant to said wrongful and false arrest and imprisonment.

75. At all times, the unlawful false arrest, false imprisonment and malicious prosecution of Plaintiff were without right to privilege, unjustified, and entirely without probable cause.

76. At no time did Defendants or their officers, agents, servants, employees and/or departments have any legal basis or legal process for the arrest, detention, imprisonment, unsubstantiated charges, and malicious prosecution of Plaintiff.

77. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF LAMEEK
MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT and DETECTIVE HYRAM RIFFAS
FOR UNREASONABLE AND EXCESSIVE FORCE IN VIOLATION OF 42
U.S.C. §1983.**

78. Plaintiff repeats, reiterate and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

79. By their conduct, defendants NYC, NYPD and RIFFAS, under color of the law, deprived Plaintiff of his constitutional right to be free from excessive and unreasonable force.

80. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF LAMEEK
MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK and THE
NEW YORK CITY POLICE DEPARTMENT FOR MALICIOUS
PROSECUTION IN VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

81. Plaintiff repeats each and every allegation set forth above in the preceding paragraphs with the same force and effect as if set forth herein.

82. The charges were baseless and not predicated upon any probable cause, that is, the state of the facts in the minds of the prosecutors would not lead a man of ordinary caution and prudence to believe, or entertain an honest or strong suspicion that Plaintiff was guilty. In fact, Plaintiff was in fact the victim of a shooting.

83. The criminal proceeding terminated in favor of Plaintiff when the court dismissed the charges on or about April 4, 2017.

84. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF LAMEEK MARTIN
AGAINST DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and DETECTIVE HYRAM RIFFAS FOR FALSE
IMPRISONMENT.**

85. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

86. Plaintiff was wrongfully, unlawfully and unjustifiably charged, arrested, detained and deprived of his liberty against his will, and was imprisoned by defendants NYC, NYPD and RIFFAS, their agents, servants, employees and other officers.

87. At all relevant times, these defendants acted forcibly in apprehending Plaintiff.

88. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention and imprisonment was carried out without a warrant.

89. Throughout Plaintiff's false arrest and imprisonment, defendants NYC, NYPD and RIFFAS did not permit him an opportunity to establish his innocence.

90. At all times mentioned, the unlawful, false arrest and imprisonment of Plaintiff was without right or probable cause, and was forcible and against his will.

91. All of the foregoing occurred without any fault or provocation on the part of Plaintiff.

92. At all relevant times defendants NYC, NYPD and RIFFAS, their agents, servants, employees and other officers who were responsible for the false arrest and imprisonment of Plaintiff were employees of NYC and NYPD, and were acting for, upon and in furtherance of the business of their employees and within the scope of their employment.

93. As a result of the false arrest and imprisonment, Plaintiff was subjected to
humiliation,

ridicule and disgrace. He was required to incur bills for legal services rendered and was otherwise injured and damaged.

94. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
LAMEEK MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK
and THE NEW YORK CITY POLICE DEPARTMENT FOR DELAY AND
DENIAL OF MEDICAL TREATMENT AND FAILURE TO PROTECT
WHILE IN CUSTODY.**

95. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

96. By their conduct and under color of the law, defendants NYC and NYPD, and each of its agents individually, and/or vicariously, by and through their agents, servants and/or employees, acted with malicious or at least deliberate indifference in failing to protect Plaintiff from violence while in police custody and while incarcerated and in failing to secure the medical attention required for his serious injuries, in a manner that deprived him of his constitutional rights and perpetuated and exacerbated his physical and mental pain and suffering.

97. These defendants knew or should have known about the severe injuries Plaintiff had suffered and were negligent in their failure to protect him from further injury at the precinct and their failure to prevent an unconscionable and unnecessary denial and delay in medical treatment and transport to a hospital.

98. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds The jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF LAMEEK
MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK and THE
NEW YORK CITY POLICE DEPARTMENT and DETECTIVE HYRAM
RIFFAS FOR VIOLATING AND DEPRIVING PLAINTIFF OF HIS CIVIL
RIGHTS UNDER 42 U.S.C. ARTICLE §1983 TO WIT VIOLATION OF HIS**

FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENT.

99. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

100. Defendants NYC and NYPD caused and allowed for the arrest and imprisonment And malicious prosecution of the Plaintiff under color of law, depriving Plaintiff of rights secured by the Constitution and laws of the United States, including Plaintiff's Fourth, Fifth and Sixth Amendment rights.

101. Defendants NYC, NYPD and RIFFAS maliciously prosecuted Plaintiff in violation of official municipal policies and customs and unlawfully and improperly using their authority to deprive Plaintiff of his liberty, and deprived Plaintiff of his rights, privileges and immunities as guaranteed by the First, Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

102. Defendants RIFFAS, NYC and NYPD, their agents, servants, employees and other officers, violated Plaintiff's first amendment rights by depriving Plaintiff of his right to petition the Government for a redress of grievances.

103. Defendants RIFFAS, NYC and NYPD, their agents, servants, employees and other officers, violated Plaintiff's fourth amendment rights by apprehending Plaintiff without a warrant or probable cause.

104. Defendants RIFFAS, NYC and NYPD, their agents, servants, employees and other officers violated Plaintiff's fifth amendment rights by depriving Plaintiff of life and liberty without due process of law.

105. Defendants RIFFAS, NYC and NYPD, their agents, servants, employees and other officers violated Plaintiff's fourteenth amendment rights by depriving Plaintiff of equal protection of the law.

106. Further, the municipal defendants knew that they could not convict Plaintiff and that all evidence indicated that he was innocent, and whatever evidence was in their possession was false and tampered with by the NYPD. Upon information and belief, they continued to maliciously prosecute Plaintiff LAMEEK MARTIN with the goal of making him plead to something, anything, so that he would not be able to maintain an action against Defendant officers for their wrongdoing.

107. Consequently, defendants NYC, NYPD and RIFFAS caused, permitted and allowed Plaintiff to sustain damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF LAMEEK
MARTIN AGAINST DEFENDANTS THE CITY OF NEW YORK and THE
NEW YORK CITY POLICE DEPARTMENT and DETECTIVE HYRAM
RIFFAS FOR FAILURE TO INTERVENE TO PREVENT VIOLATION AND
DEPRIVATION OF PLAINTIFF'S CIVIL RIGHTS**

108. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

109. As a result of the above actions, Defendants NYC, NYPD and RIFFAS and each of its agents individually, and/or vicariously, by and through their agents, servants and/or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff.

110. As a result of the foregoing, Defendants NYC, NYPD and RIFFAS, individually, and/or vicariously, by and through their agents, servants and/or employees, and the Officers and Prosecutors individually, displayed a deliberate indifference to Plaintiff's rights to be free from unreasonable searches and seizures, false imprisonment and malicious prosecution.

111. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF LAMEEK MARTIN
AGAINST DEFENDANTS THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT FOR GROSS NEGLIGENCE AND NEGLIGENCE.**

112. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

113. Defendants NYC and NYPD have been grossly negligent and negligent in the supervision, training and monitoring of their representatives who consult with and counsel police officers who are suspected of crimes and misconduct, and police officers who are witnesses to crimes and misconduct by their fellow officers.

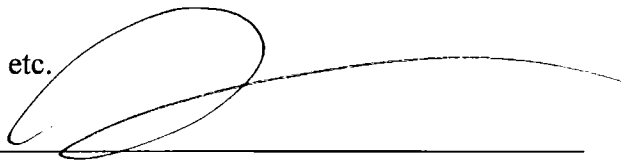
114. Defendants NYC and NYPD have been grossly negligent and negligent in the instruction and training they provide to their members with respect to their responsibilities to report crimes or misconduct by other police officers.

115. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds The jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff, LAMEEK MARTIN, hereby demands judgment awarding damages against each and every Defendant herein, in all causes of action, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; together with interest, attorney fees, the costs and disbursements of this action, and such other and further relief as to this Court deems just and proper.

Dated: Fresh Meadows, New York
December 18, 2017

Yours, etc.



DANIELLA LEVI, ESQ.
DANIELLA LEVI & ASSOCIATES, P. C.
Attorneys for Plaintiff
LAMEEK MARTIN
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Fresh Meadows, New York 11366
(718) 380-1050

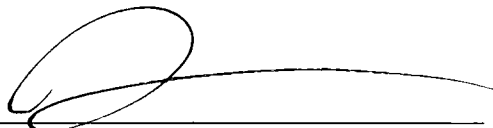
ATTORNEY'S VERIFICATION

DANIELLA LEVI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **DANIELLA LEVI & ASSOCIATES, P. C.**, attorneys of record for Plaintiff **LAMEEK MARTIN**, in the action within. I have read the annexed **SUMMONS & COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Fresh Meadows, New York
 December 18, 2017



DANIELLA LEVI, ESQ.

INDEX NO.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LAMEEK MARTIN,

Plaintiff,

-against-

THE LIVING ROOM STEAK HOUSE, THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and DETECTIVE HYRAM RIFFAS, shield number 4814 of the 62nd
Precinct,

Defendants,

SUMMONS & COMPLAINT

DANIELLA LEVI & ASSOCIATES, PC

Attorneys for Plaintiffs

LAMEEK MARTIN

159-16 Union Turnpike, Suite 200

Fresh Meadows, New York 11366

(718) 380-1010

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12/18/2017

Signature: 

Print Signer's Name: DANIELLA LEVI, ESQ.
